

Definitions: Am38 Bookings (Mauritius) Ltd shall be referred to as “Am38”

Client or person who will use the website to browse, view and book a car shall be referred to as the “Customer”

LEGAL SECTION

Disclaimer

This website (“Site”) is offered as is, without any express or implied representations or warranties. AM38 Bookings (Mauritius) Ltd (“AM38”) does not provide any representations or warranties concerning this Site or the information and materials available on it.

No Warranties

Without prejudice to the generality of the foregoing paragraph, Am38, makes no guarantees regarding the continuous availability of this Site, its availability in general, or the completeness, accuracy, or absence of misleading information on this platform. Nothing contained on this Site should be construed as advice.

Limitation of Liability

AM38, shall not be held liable, whether under contract or otherwise, for any indirect, special, or consequential losses incurred by the Site users or arising from the content, use, or any other aspect of this Site. Such losses may include, but are not limited to, business loss, loss of revenue, income, profits, anticipated savings, business relationships, reputation, goodwill, or data corruption. These limitations of liability remain in force even if AM38, has been explicitly made aware of the possibility of such losses.

Exceptions

Nothing in this website disclaimer will exclude or limit any warranty implied by law that it would be unlawful to exclude and/ or limit.

Reasonable

By accessing this Site, the user acknowledges the reasonableness of the exclusion and limitation of liability as stated in this disclaimer. If the user finds these terms unreasonable, they should refrain from using this Site.

Personal Indemnity

The user acknowledges that AM38, operates as a limited liability entity and has a vested interest in mitigating the personal liability of its employees, directors and representatives. Consequently, the user agrees not to bring any personal claims against AM38, its employees, directors, or representatives for any losses related to this Site.

Furthermore, without detracting from the previous paragraph, the user also agrees that the warranty and liability limitations outlined in this disclaimer extend to the protection of Am38 as a company, its employees, directors, representatives, agents, subsidiaries, successors, assigns and subcontractors.

Unenforceable Provisions

Should any provision of this disclaimer be deemed unenforceable under applicable law, such a determination shall not impact the enforceability of the remaining provisions within this disclaimer. In such a case, the unenforceable provision will be considered separately removable from the overall disclaimer.

Privacy Principles

Am38 commitment to your privacy is paramount and we diligently adhere to the privacy principles outlined in our policy. However, please be aware that the transmission of information over the internet, including data submitted through this Site, may not be entirely secure. While we employ robust security measures to protect your personal information, we cannot guarantee absolute security. Your use of this Site and the submission of information are done at your own risk. We recommend exercising caution and discretion when sharing personal data online and urge you to contact us directly if you have any concerns regarding your privacy or data security.

Our policies and procedures are summarised below for your understanding:

Data Retention: We will retain your personal information only as long as necessary for the purposes outlined in this privacy policy, to fulfil legal obligations, settle dispute and enforce our agreements and policies.

Security Commitment: While we employ commercially acceptable measures to safeguard your data, absolute security cannot be guaranteed. We utilise various safeguards to mitigate unauthorised access or disclosure of your information and we strive to stay compliant with applicable laws.

Data Transfer: Our operations are based in the Republic of Mauritius and your information, including personal data, may be transferred to servers located outside your country of residence, where data privacy laws may differ. We ensure that data transferred is protected within the confines of the data protection legislation of the Republic of Mauritius, or through agreements with service providers who commit to similar data protection standards.

Links to Other Websites: Our Site contain links to third-party websites, mobile apps, or services. We do not control the privacy practices of these parties and recommend reviewing their respective privacy policies when providing personal information.

Changes to Privacy Policy: We may periodically update our privacy policy, with changes posted on our Site and taking effect from the date of posting.

Access to Your Personal Information: At any time, you have the right to:

- Confirm whether we hold your personal information.
- Access your personal information.
- Know the identities or categories of third parties to whom we have disclosed your personal information.
- Request corrections or deletions of any incomplete, misleading, inaccurate, excessive, or outdated personal information in our possession.